

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ethan Waterman	Team: Squad #13	CCRB Case #: 202307835	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 08/18/2023 10:10 PM, Saturday, 08/19/2023 12:51 AM	Location of Incident: In front of 8925 Avenue D; 69th Precinct stationhouse	18 Mo. SOL 2/19/2025	Precinct: 69
Date/Time CV Reported Mon, 08/21/2023 11:02 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/21/2023 11:02 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Tashea Simsgaby	25749	970221	069 PCT
2. PO Nataly Sampedro	26822	969350	069 PCT
3. An officer			069 PCT
4. SGT Saidul Islam	01615	936798	069 PCT
5. PO Jia Lau	06770	964606	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Matthew Flynn	03385	953870	069 PCT
2. PO Jerry Bonanno	21076	968282	121 PCT
3. PO Farhan Siraj	11203	976413	069 PCT
4. PO Christopher Scaperotta	16864	949634	069 PCT
5. PO Kaleem Zaheer	12897	970953	069 PCT
6. PO Edwin Torres	11999	970896	069 PCT
7. PO Jose Peralta	03305	976329	069 PCT
8. PO Sukhdev Rathour	07542	964720	069 PCT
9. SGT Brian Maher	02245	955113	069 PCT
10. PO Daniel Irving	23396	969817	069 PCT
11. LT Sheldon Arrindell	00000	944335	069 PCT
12. PO Wildmarc Hector	10299	976180	069 PCT
13. SGT Godwin Ngai	02291	954175	069 PCT
14. PO Takeya Peterson	15962	975732	069 PCT
15. PO Courtney Murphy	19478	975045	069 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Tashea Simsgaby	Force: At 8925 Avenue D in Brooklyn, Police Officer Tashea Simsgaby used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Jia Lau	Force: At 8925 Avenue D in Brooklyn, Police Officer Jia Lau used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . SGT Saidul Islam	Force: At 8925 Avenue D in Brooklyn, Sergeant Saidul Islam used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . PO Jia Lau	Abuse: At 8925 Avenue D in Brooklyn, Police Officer Jia Lau threatened § 87(2)(b) with the use of force.	D . Within NYPD Guidelines
E . PO Jia Lau	Discourtesy: At 8925 Avenue D in Brooklyn, Police Officer Jia Lau spoke discourteously to § 87(2)(b)	E . Within NYPD Guidelines
F . SGT Saidul Islam	Abuse: At 8925 Avenue D in Brooklyn, Sergeant Saidul Islam seized § 87(2)(b) property.	F . Substantiated
G . PO Nataly Sampedro	Abuse: At the 69th Precinct stationhouse, Police Officer Nataly Sampedro issued an unlawful summons to § 87(2)(b)	G . Substantiated
H . SGT Saidul Islam	Abuse: At the 69th Precinct stationhouse, Sergeant Saidul Islam issued an unlawful summons to § 87(2)(b)	H . Substantiated
I . PO Tashea Simsgaby	Abuse: At the 69th Precinct stationhouse, Police Officer Tashea Simsgaby issued an unlawful summons to § 87(2)(b)	I . Substantiated
J . SGT Saidul Islam	Abuse: At the 69th Precinct stationhouse, Sergeant Saidul Islam issued an unlawful summons to § 87(2)(b)	J . Substantiated
K . An officer	Abuse: At the 69th Precinct stationhouse, an officer damaged § 87(2)(b) property.	K . Unfounded
L . An officer	Abuse: At the 69th Precinct stationhouse, an officer damaged § 87(2)(b) property.	L . Unfounded
M . PO Nataly Sampedro	Abuse: At the 69th Precinct stationhouse, Police Officer Nataly Sampedro refused to provide her shield number to § 87(2)(b)	M . Unable to Determine
N . PO Nataly Sampedro	Abuse: At the 69th Precinct stationhouse, Police Officer Nataly Sampedro obstructed her shield number.	N . Unable to Determine
§ 87(2)(g), § 87(4-b)		

Case Summary

On August 21, 2023, § 87(2)(b) called the CCRB and filed this complaint on behalf of herself (BR 01). On August 22, 2023, § 87(2)(b) called the CCRB and filed this complaint on behalf of herself, her cousin § 87(2)(b) as well as her friends § 87(2)(b) and § 87(2)(b) (BR 02). On August 22, 2023, § 87(2)(b) called the CCRB and filed this complaint as a reporting non-witness on behalf of the above-listed parties (BR 03). On August 22, 2023, § 87(2)(b) called the Internal Affairs Bureau and filed this complaint on behalf of herself and the above-listed parties (BR 04).

On August 18, 2023, at approximately 10:10 p.m., in front of 8925 Avenue D in Brooklyn, Police Officers Nataly Sampredo and Tashea Simsgaby of the 69th Precinct approached § 87(2)(b) parked vehicle because they saw its occupants smoking marijuana in the vehicle. PO Simsgaby, Police Officer Jia Lau, and Sgt. Saidul Islam of the 69th Precinct used physical force to handcuff § 87(2)(b) (**Allegations A, B, and C, Force: Physical Force, Within NYPD Guidelines**) while PO Lau told § 87(2)(b) “You’ll get fucking Tased, you hear me?” (**Allegations D and E – Abuse of Authority: Threat of Force, Discourtesy: Word; Within NYPD Guidelines**). Sgt. Islam removed § 87(2)(b) vehicle to the 69th Precinct stationhouse (**Allegation F, Abuse of Authority: Seizure of Property, Substantiated**). PO Sampredo prepared a disorderly conduct summons for § 87(2)(b) PO Simsgaby prepared a disorderly conduct summons for § 87(2)(b) and Sgt. Islam approved both (**Allegations G, H, I, and J – Abuse of Authority: Unlawful Summons, Substantiated**). Officers allegedly damaged unopened gifts from § 87(2)(b) and § 87(2)(b) that were inside § 87(2)(b) vehicle (**Allegations K and L – Abuse of Authority: Property Damaged, Unfounded**).

On August 19, 2023, at approximately 1:50 a.m., at the 69th Precinct stationhouse, PO Sampredo allegedly refused to provide her shield number to § 87(2)(b) upon her request (**Allegation M, Abuse of Authority: Refusal to Provide Shield Number, Unable to Determine**). PO Sampredo allegedly covered her shield with her hair while § 87(2)(b) attempted to photograph it (**Allegation N, Abuse of Authority: Obstructed Shield Number, Unable to Determine**).

§ 87(2)(g), § 87(4-b)

PO Sampredo arrested § 87(2)(b) for criminal possession of a weapon in the fourth degree, disorderly conduct, and smoking/vaping where prohibited (BR 05). PO Simsgaby issued § 87(2)(b) a summons for disorderly conduct (BR 06). PO Sampredo issued § 87(2)(b) summonses for disorderly conduct and for burning of cannabis inside a vehicle (BR 07-08). PO Sampredo issued § 87(2)(b) a summons for littering (BR 09).

The investigation received body-worn camera (BWC) footage from the subject officers and other officers assigned to the 69th Precinct (BR 10), stationhouse footage from the 69th Precinct (BR 11), cell phone footage from § 87(2)(b) (BR 12), and photographs from § 87(2)(b) (BR 13-14). The relevant aspects of this footage and photographic evidence shall be discussed below.

Findings and Recommendations

Allegation (A) Force: At 8925 Avenue D in Brooklyn, Police Officer Tashea Simsgaby used physical force against § 87(2)(b)

Allegation (B) Force: At 8925 Avenue D in Brooklyn, Police Officer Jia Lau used physical force against § 87(2)(b)

Allegation (C) Force: At 8925 Avenue D in Brooklyn, Sergeant Saidul Islam used physical force against § 87(2)(b)

Allegation (D) Abuse of Authority: At 8925 Avenue D in Brooklyn, Police Officer Jia Lau threatened § 87(2)(b) with the use of force.

Allegation (E) Discourtesy: At 8925 Avenue D in Brooklyn, Police Officer Jia Lau spoke discourteously to § 87(2)(b)

Based on BWC footage (BR 15-18) and statements from § 87(2)(b) and § 87(2)(b) (BR 02, 19-21), the investigation established the following facts: PO Sampedro and PO Simsgaby conducted a stop of § 87(2)(b) parked Hyundai Elantra. Inside § 87(2)(b) vehicle were § 87(2)(b) in the driver's seat, § 87(2)(b) in the front passenger seat, § 87(2)(b) in the rear passenger-side seat, and § 87(2)(b) in the rear driver-side seat. PO Sampedro directed § 87(2)(b) to roll down his windows, and § 87(2)(b) told her that there was no reason to do so. PO Simsgaby directed § 87(2)(b) to exit the car. He complied, and then she reviewed his driver's license at the rear of the vehicle. PO Sampedro and PO Simsgaby stated that their reason for the stop was because they saw § 87(2)(b) smoking inside the vehicle. § 87(2)(b) said in his interview (BR 20) that he was heating up a "spliff" with a lighter but that he had not yet started smoking the spliff, and § 87(2)(b) noted in her intake call (BR 02) that § 87(2)(b) had just lit the marijuana spliff when officers arrived.) PO Sampedro then directed § 87(2)(b) out of the vehicle, and she ultimately complied. § 87(2)(b) littered a gum wrapper in PO Sampedro's presence, refused to pick it up, and refused to provide identification to allow PO Sampedro to prepare a summons for littering. Ultimately, PO Sampedro and Sgt. Islam decided to bring all four individuals back to the stationhouse to prepare summonses for them. PO Sampedro handcuffed § 87(2)(b) and § 87(2)(b). PO Lau handcuffed § 87(2)(b) and Sgt. Islam, PO Simsgaby, and PO Lau handcuffed § 87(2)(b). Sgt. Islam drove § 87(2)(b) vehicle to the 69th Precinct stationhouse. An inventory search at the stationhouse produced a Taser/stun gun, for which § 87(2)(b) was charged.

In her CCRB interview (BR 19), § 87(2)(b) said the officers grabbed § 87(2)(b) to handcuff him. § 87(2)(b) had been standing and facing towards § 87(2)(b) vehicle, and the officers pushed him onto the rear windshield of the vehicle. § 87(2)(b) head struck the windshield as a result.

In his CCRB interview (BR 20), § 87(2)(b) said that when the officers first approached to handcuff him, his back was toward the trunk, he held his phone in his left hand, and his right hand was near his hip. § 87(2)(b) did not remember the officers directing any commands toward him at this time. PO Simsgaby, Sgt. Islam, and PO Lau grabbed § 87(2)(b) arms, shoulders, and wrists. § 87(2)(b) was confused about what was happening and may have tensed up a bit in response. The officers turned § 87(2)(b) body around to face the car. § 87(2)(b) started turning his wrists behind his back. PO Simsgaby and either PO Lau or Sgt. Islam then suddenly pushed § 87(2)(b) by the arms and back, forcing § 87(2)(b) torso and the right side of his head onto the trunk of the vehicle. The officers handcuffed § 87(2)(b) and PO Lau asked § 87(2)(b) if he wanted to get Tased.

In her CCRB phone statement (BR 21), § 87(2)(b) said that when officers handcuffed § 87(2)(b) at least three officers slammed him against her and the car. § 87(2)(b) was not resisting at all. § 87(2)(b) dropped her phone and her shoes as a result of § 87(2)(b) being pushed against her.

Per PO Sampedro's first BWC activation starting at runtime 10:48 (BR 15), PO Simsgaby directs § 87(2)(b) to turn around. At this point, § 87(2)(b) faces away from § 87(2)(b) vehicle

and holds his phone to his right ear with his right hand while apparently speaking with someone. § 87(2)(b) left wrist is handcuffed, and PO Simsgaby repeatedly tells § 87(2)(b) to turn around. At 10:55, PO Lau apparently begins to assist, and a thud is heard. In response, § 87(2)(b) loses her balance and stumbles rightward while PO Sampedro holds her arms behind her back.

From PO Simsgaby's perspective during her first BWC activation (**BR 16**), starting at 10:50, PO Simsgaby grabs a set of handcuffs and approaches § 87(2)(b). She tells him repeatedly to turn around. At 11:00, § 87(2)(b) torso faces § 87(2)(b) vehicle. PO Simsgaby's BWC then becomes obscured due to her proximity to § 87(2)(b) body and does not meaningfully capture how the officers placed § 87(2)(b) against the car and handcuffed him.

Per PO Lau's first BWC activation starting at 09:29 (**BR 17**), PO Simsgaby tells § 87(2)(b) to turn around. At 09:32, PO Lau approaches § 87(2)(b) and grabs his left arm, and § 87(2)(b) body falls forward onto the trunk of § 87(2)(b) vehicle. PO Lau yells at § 87(2)(b) "You wanna get Tased? You wanna get Tased right now? You'll get fucking Tased, you hear me?" PO Lau's BWC is obscured due to his proximity to § 87(2)(b) body between 09:34 and 09:40. At 09:40, PO Lau's camera captures PO Simsgaby using her right forearm to push against § 87(2)(b) back while holding his sweatshirt with her right hand. Sgt. Islam and PO Simsgaby then handcuff § 87(2)(b).

Per Sgt. Islam's first BWC activation starting at 09:35 (**BR 18**), Sgt. Islam begins to handcuff § 87(2)(b) right arm. § 87(2)(b) body turns to face away from the vehicle. Officers apparently struggle with § 87(2)(b) and turn him to face the vehicle. At 09:43, § 87(2)(b) appears to tense his right arm and puts his right palm on the trunk of the vehicle. By 09:46, Sgt. Islam gains control of § 87(2)(b) right arm and handcuffs § 87(2)(b).

Per Police Officer Farhan Siraj's BWC activation starting at 01:48 (**BR 22**), PO Lau grabs § 87(2)(b) left arm. § 87(2)(b) body turns to face PO Lau at 01:51. PO Lau or PO Simsgaby apparently push § 87(2)(b) right flank against the vehicle. PO Siraj then turns away, and his BWC does not further capture any force used against § 87(2)(b).

In his CCRB interview (**BR 23**), PO Lau acknowledged that he assisted in handcuffing § 87(2)(b). PO Lau did not recall if any officers told § 87(2)(b) to put his hands behind his back or gave him any other commands. At first, § 87(2)(b) faced away from the car. PO Lau and Sgt. Islam each grabbed one of § 87(2)(b) arms. § 87(2)(b) moved his arm around and did not surrender it to the officers. § 87(2)(b) then faced the car, and PO Simsgaby handcuffed § 87(2)(b). PO Lau did not recall how § 87(2)(b) torso came to rest on top of the vehicle or if officers forced § 87(2)(b) upper body onto the car. PO Lau did not recall if he, Sgt. Islam, or PO Simsgaby ever pushed § 87(2)(b) head against the rear windshield of the car. PO Lau threatened to use his Taser on § 87(2)(b) because § 87(2)(b) was refusing to give his hands over to be handcuffed, and PO Lau thought such a threat would assist in gaining § 87(2)(b) compliance. PO Lau did not hold his Taser in his hand while he made this threat. PO Lau used profanity to try to get § 87(2)(b) attention and gain his compliance. PO Lau believed the threat was effective because § 87(2)(b) did not move "crazy" after the threat was made. It took approximately one minute to get § 87(2)(b) into handcuffs.

In her CCRB interview (**BR 24**), PO Simsgaby stated that she believed she pushed § 87(2)(b) on his back and arms against the car while handcuffing him. PO Simsgaby believed that § 87(2)(b) upper body contacted the car because of the push, but she did not know if § 87(2)(b) head made contact with the car.

In his CCRB interview (**BR 25**), Sgt. Islam stated that he helped PO Lau handcuff § 87(2)(b). Sgt. Islam and PO Lau told § 87(2)(b) to turn around to face the car. § 87(2)(b) seemed a bit shocked that he was being arrested and tensed up his arms, leading Sgt. Islam to believe that § 87(2)(b) was going to fight the officers. § 87(2)(b) turned his body to face the car. Sgt. Islam and PO Lau each grabbed one of § 87(2)(b) hands. At first, § 87(2)(b) right hand/arm was touching the trunk of the vehicle, and Sgt. Islam pulled the right hand backwards. Sgt. Islam pushed § 87(2)(b) toward the car, likely by his lower back. § 87(2)(b) tensed himself a bit and was ultimately handcuffed. Sgt. Islam did not recall seeing § 87(2)(b) torso and head hit the rear of the car. Sgt. Islam did not ever push § 87(2)(b) head against the car, nor did he see any other officer do so.

Per Patrol Guide Procedure 221-01 (**BR 26**), in all circumstances, any application or use of force must be reasonable under the circumstances. Officers will use only the reasonable force necessary to gain control or custody of a subject, and de-escalation should be prioritized whenever possible. Officers must consider the following factors when determining the reasonableness of the use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

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The available BWC shows that PO Lau and PO Simsgaby indeed pushed § 87(2)(b) body against the vehicle, but it does not capture officers pushing § 87(2)(b) head against the trunk or rear windshield of the vehicle. The available BWC also shows that § 87(2)(b) did not initially comply with command to turn around, that he turned to face PO Lau after PO Lau initially touched him, and that he tensed his arms when Sgt. Islam and PO Lau grabbed them. § 87(2)(g)

It is therefore recommended that **Allegations A, B, and C** be closed as **within NYPD guidelines**.

Per Patrol Guide Procedure 221-08 (**BR 27**), an officer may point and place the laser dot of an activated Taser on a subject ("laser warning") and/or display a visible and audible arc of electricity between a Taser's electrodes ("warning arc") to gain the subject's voluntary compliance and prevent the need to use force. When feasible, and consistent with personal safety, officers should give a verbal warning in conjunction with a laser warning or warning arc.

Per DAO-DCT Disciplinary Case No. 2021-23487 (**BR 71**), "An analysis of whether the language used by [an officer] is discourteous must consider the context in which it is used. Among the factors to be considered are whether the allegedly discourteous language includes swear words or words which, under the circumstances presented, can objectively be seen as offensive; whether the words spoken are offensive because of the time and place of their utterance; and the relationship of the parties to the conversation. The Tribunal is well aware that the vernacular of Joe or Jane New York may vary from neighborhood to neighborhood, and from group to group. A word one cohort may deem patently offensive may simply be another cohort's idea of word choice." The Tribunal further noted that "offensive language" [a phrase the Tribunal used interchangeably with "discourteous language"],⁰¹ that is directed towards and is about civilians (like calling a civilian's intelligence into question and using profanity to emphasize such) is objectively insulting and advances no police

purpose, whereas discourteous language used in an escalating situation to dissuade civilians from engaging in a physical confrontation will often be found to be reasonable.

§ 87(2)(b) was under arrest and actively resisting when PO Lau told him, “You wanna get Tased? You wanna get Tased right now? You’ll get fucking Tased, you hear me?” § 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed as **within NYPD guidelines**.

Allegation (F) Abuse of Authority: At 8925 Avenue D in Brooklyn, Sergeant Saidul Islam seized § 87(2)(b) property.

It is undisputed that Sgt. Islam drove § 87(2)(b) vehicle to the 69th Precinct stationhouse.

Per PO Sampedro’s first BWC activation between runtimes 00:55 and 01:10 (**BR 15**), § 87(2)(b) vehicle is parked in a parking lane facing southbound on Avenue D next to the Labcorp facility at 8925 Avenue D. There are no curb cuts or fire hydrants in the immediate vicinity. The vehicle appears to be legally parked.

A Google Street View image taken in December 2022 (**BR 30**) shows that the parking regulations for this stretch of Avenue D prohibits parking between midnight and 3:00 a.m. on Mondays and Thursdays. The NYC DOT Parking Regulations Map (<https://nycdotsigns.net/>) confirms that these regulations remain current as of April 2, 2024.

The incident date – August 18, 2023 – fell on a Friday.

In his CCRB interview (**BR 31**), Sgt. Islam said that § 87(2)(b) vehicle was transported to the 69th Precinct stationhouse for safekeeping. Sgt. Islam stated that when someone is arrested, that person’s vehicle is usually transported to the stationhouse to ensure nothing happens to the vehicle while the person is in police custody. Sgt. Islam was not sure if the vehicle was legally parked. There was no one else at the scene who could be allowed to take possession of the car.

As discussed by the court in *People v. Weeks*, 182 A.D.3d 539 (**BR 32**), and *People v. Francis*, 12 Misc. 3d 781 (**BR 33**), officers may only seize or impound the vehicle of an arrested individual if there is reason to believe that the car itself is connected to criminal activity or is in the interest of public safety or the police’s “community caretaking” functions. Valid reasons for impounding a vehicle include a reasonable basis to believe that the car itself is evidence of a crime; the car cannot be operated because it is unregistered, uninsured or uninspected; the car was involved in a fatal automobile accident; or the car was driven by an unlicensed driver or a driver whose license is suspended and there is no one who is legally able to drive the car.

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It is therefore recommended that **Allegation F** be **substantiated**.

Allegation (G) Abuse of Authority: At the 69th Precinct stationhouse, Police Officer Nataly Sampedro issued an unlawful summons to § 87(2)(b)

Allegation (H) Abuse of Authority: At the 69th Precinct stationhouse, Sergeant Saidul Islam issued an unlawful summons to § 87(2)(b)

Allegation (I) Abuse of Authority: At the 69th Precinct stationhouse, Police Officer Tashea Simsgaby issued an unlawful summons to § 87(2)(b)

Allegation (J) Abuse of Authority: At the 69th Precinct stationhouse, Sergeant Saidul Islam issued an unlawful summons to § 87(2)(b)

It is undisputed that § 87(2)(b) did not roll down his windows at PO Sampedro's request.

PO Sampedro wrote a summons alleging that § 87(2)(b) committed disorderly conduct (BR 06). The summons did not list a subsection. PO Sampedro wrote the following in the factual allegations section: "At [time and place of occurrence,] the [undersigned] observed the defendant when asked multiple times to step out of rear middle passenger seat of vehicle become irrate [sic] towards officers. When asked for defendant's identification, defendant states "I don't have ID[.]" Defendants [sic] actions caused a crowd to gather."

PO Simsgaby wrote a summons alleging that § 87(2)(b) committed disorderly conduct, subsection 1: engaging in fighting, or violent, tumultuous or threatening behavior (BR 08). PO Simsgaby wrote the following in the factual allegations section: "At [time and place of occurrence, [defendant] became irrate [sic] while officers were trying to conduct an investigation in the field causing a crowd to gather and harm others in public."

In the command log arrest entries for § 87(2)(b) and § 87(2)(b) (BR 34), Sgt. Islam is listed as the supervisor verifying their arrests.

Per PO Simsgaby's first BWC activation (BR 16), starting at runtime 01:38, she directs § 87(2)(b) to exit the vehicle. § 87(2)(b) complies and walks to the rear of the vehicle. § 87(2)(b) provides his identification upon request and consistently maintains his position at the rear of the vehicle with his back against the trunk. As noted above in **Allegations A-E**, when PO Simsgaby initially directs § 87(2)(b) to turn around, § 87(2)(b) does not do so. However, after a few seconds, starting at runtime 11:00, § 87(2)(b) turns around and faces the vehicle before officers push him against the car and handcuff him.

Per Sgt. Islam's first BWC activation (BR 18), starting at runtime 02:08, Sgt. Islam directs § 87(2)(b) and § 87(2)(b) to exit the vehicle. They ultimately comply after briefly protesting verbally. Between § 87(2)(b) stepping out of the vehicle at 02:35, and when Sgt. Islam walks away from § 87(2)(b) at 08:50, § 87(2)(b) never raises her voice, yells, or otherwise draws attention to the scene.

Starting at 09:35 of PO Sampedro's first BWC activation (BR 15), PO Sampedro interacts with § 87(2)(b). PO Sampedro directs § 87(2)(b) to stand against the back of the trunk, and § 87(2)(b) complies. § 87(2)(b) never raises her voice or yells at any point while interacting with PO Sampedro, including when PO Sampedro ultimately handcuffs § 87(2)(b) starting at 10:35.

At no point in any of the BWC activations of the officers who responded to the arrest location (in order of appearance: PO Sampedro (BR 15), PO Simsgaby (BR 16), PO Lau (BR 17), Sgt. Islam (BR 18), Police Officer Farhan Siraj (BR 22), Police Officer Christopher Scaperotta (BR 35), Police Officer Kaleem Zaheer (BR 36), Police Officer Edwin Torres (BR 37), Police Officer Jose Peralta (BR 38), Police Officer Sukhdev Rathour (BR 39), Sergeant Brian Maher (BR 40), Police Officer

Daniel Irving (BR 41), Lieutenant Sheldon Arrindell (BR 42), and Police Officer Wildmarc Hector (BR 43), all of the 69th Precinct) was there ever a crowd visible in the vicinity of the car stop.

In her CCRB interview (BR 24), PO Simsgaby stated that § 87(2)(b) was generally compliant in moving toward the back of the car but seemed like he did not like that PO Simsgaby physically guided him to the rear of the car and said something like, “Don’t touch me.” PO Simsgaby believed that a crowd formed a few car lengths away when she was handcuffing § 87(2)(b). The crowd never interfered with the officers. PO Simsgaby did not know if any of the vehicle’s occupants called for people to come to the scene. § 87(2)(b) did not wish to be handcuffed and tensed his body up.

Regarding the disorderly conduct summons she prepared for § 87(2)(b), PO Simsgaby stated that § 87(2)(b) was “irate” when officers asked him to roll down his windows at the beginning of the vehicle stop and when PO Simsgaby asked § 87(2)(b) to turn around to be handcuffed. PO Simsgaby clarified that § 87(2)(b) was irate by resisting arrest, specifically by tensing his arms. § 87(2)(b) did nothing else to resist arrest. PO Simsgaby did not recall any other moment in which § 87(2)(b) refused to comply with any police order. PO Simsgaby believed that a crowd began to form because they saw § 87(2)(b) being arrested (as opposed to § 87(2)(b) doing anything to draw the crowd’s attention).

In his CCRB interview (BR 31), PO Sampedro acknowledged that she prepared a summons for disorderly conduct for § 87(2)(b). § 87(2)(b) shouted while standing on the side of the car by PO Lau and PO Simsgaby. § 87(2)(b) did not present any public harm, but because a crowd formed, her actions constituted disorderly conduct. There were no other reasons to summons § 87(2)(b) for disorderly conduct.

In his CCRB interview (BR 25), Sgt. Islam said that § 87(2)(b) conduct drew a crowd because she was “talking loud and screaming.” § 87(2)(b) initially refused to exit the vehicle and refused to provide identification to PO Lau. § 87(2)(b) conduct caused a group of people near a restaurant and event hall at the corner to turn their attention toward the scene. Sgt. Islam initially estimated this group to be standing less than 1,000 feet away before revising his estimate to approximately 100 feet. Sgt. Islam noted that § 87(2)(b) created a hazardous condition by not providing identification to officers.

Sgt. Islam did not recall § 87(2)(b) taking any actions that drew a crowd to the scene. § 87(2)(b) was calm when Sgt. Islam arrived, and the only interaction that Sgt. Islam had with § 87(2)(b) was during the handcuffing process when § 87(2)(b) tensed up. Sgt. Islam noted that it was possible that § 87(2)(b) tensing up rose to the level of disorderly conduct, subsection 1, but he was not completely sure. Sgt. Islam did not remember any other conduct of § 87(2)(b) that constituted disorderly conduct.

Penal Law 240.20 defines disorderly conduct as follows (BR 44):

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof:

- 1. He engages in fighting or in violent, tumultuous or threatening behavior; or*
- 2. He makes unreasonable noise; or*
- 3. In a public place, he uses abusive or obscene language, or makes an obscene gesture; or*
- 4. Without lawful authority, he disturbs any lawful assembly or meeting of persons; or*
- 5. He obstructs vehicular or pedestrian traffic; or*
- 6. He congregates with other persons in a public place and refuses to comply with a lawful*

order of the police to disperse; or

7. He creates a hazardous or physically offensive condition by any act which serves no legitimate purpose.

People v. Baker, 20 N.Y.3d 354 (BR 45), citing *People v. Weaver*, 16 N.Y.3d 123, states, “[C]ritical to a charge of disorderly conduct is a finding that defendant’s disruptive statements and behavior were of a public rather than an individual dimension. This requirement stems from the mens rea component, which requires proof of an intent to threaten public safety, peace or order (or the reckless creation of such a risk). Thus, ‘a person may be guilty of disorderly conduct only when the situation extends beyond the exchange between the individual disputants to a point where it becomes a potential or immediate public problem’.... To determine whether the record supports an inference that the requisite mens rea was present, we have employed a contextual analysis that turns on consideration of many factors, including ‘the time and place of the episode under scrutiny; the nature and character of the conflict; the number of other people in the vicinity; whether they are drawn to the disturbance and, if so, the nature and number of those attracted; and any other relevant circumstances.’”

Per Patrol Guide Procedure 209-09 (BR 46), if doubt exists concerning the identity of an individual to be issued a summons returnable to criminal court, the officer is to remove the violator to the command.

§ 87(2)(g)

BWC shows that no crowd of onlookers was present anywhere in the vicinity of the incident. § 87(2)(g)

§ 87(2)(g)

and it is recommended that Allegations G and H be substantiated.

§ 87(2)(g) § 87(2)(b) never yelled, never raised her voice, and never drew attention to herself or the stop in the minutes leading up to her being handcuffed. § 87(2)(b) momentary questioning of a police order – in this circumstance, initially refusing Sgt. Islam’s order to exit the vehicle before doing so voluntarily

§ 87(2)(g)

It is therefore

recommended that **Allegations I and J** be substantiated.

Allegation (K) Abuse of Authority: At the 69th Precinct stationhouse, an officer damaged § 87(2)(b) property.

Allegation (L) Abuse of Authority: At the 69th Precinct stationhouse, an officer damaged § 87(2)(b) property.

In her intake statement and a subsequent phone statement (**BR 02, 21**), § 87(2)(b) alleged that the gift bags for a baby shower that were in the vehicle had been damaged while in the officers' care, specifically noting that the gift bags were ripped up and the gifts themselves (Pampers, baby clothes, body wash, nursery items) were also damaged.

Property voucher invoice § 87(2)(b) (**BR 72**) for general property noted the following property that most likely was intended for a baby shower: one pack of baby Polo white socks, one pair of blue Polo baby pants, one blue Polo sweater, one nursing pillow, one box of diapers, and one pack of onesies. The property voucher makes no specific note of damage to any of these items.

The second BWC activations of Sgt. Islam (**BR 47**), PO Lau (**BR 48**), PO Sampedro (**BR 49**) and PO Simsgaby (**BR 50**), as well as PO Sampedro's sixth BWC activation (**BR 51**) and PO Simsgaby's fifth BWC activation (**BR 52**), exhaustively capture their searches of § 87(2)(b) vehicle. Sgt. Islam handles the gift bags in the back seat of the vehicle between runtimes 04:00 and 04:30 of his second BWC activation, and PO Sampedro handles the gift bags intermittently between runtimes 10:00 and 20:00 of her sixth BWC activation. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations K and L** be closed as **unfounded**.

Allegation (M) Abuse of Authority: At the 69th Precinct stationhouse, Police Officer Nataly Sampedro obstructed her shield number.

Allegation (N) Abuse of Authority: At the 69th Precinct stationhouse, Police Officer Nataly Sampedro refused to provide her shield number to § 87(2)(b)

In her intake statement (**BR 01**), § 87(2)(b) said that she went to the stationhouse and asked § 87(2)(b) arresting officer why her daughter was arrested, and the officer said § 87(2)(b) was arrested for having a Taser. § 87(2)(b) and the arresting officer went back and forth about why § 87(2)(b) was arrested. § 87(2)(b) asked the arresting officer for her shield number, and the officer refused to provide it. She was unable to see the arresting officer's shield number because her hair was covering her shield.

§ 87(2)(b) provided two photographs of PO Sampedro via email (**BR 13-14**), showing the officer with her nameplate (Samped...) and shield number (2682...) partially covered by strands of her hair.

The available BWC footage did not capture this portion of this incident.

In her CCRB interview (**BR 31**), PO Sampedro (shield number 26822) said that while she was filling out arrest paperwork, she was made aware that § 87(2)(b) mother had appeared at the stationhouse. PO Sampedro spoke with § 87(2)(b) who wanted the vehicle and the property inside to be released to her. PO Sampedro explained that she could not release the vehicle to her because it was registered to § 87(2)(b) and that she could not release the other occupants' items inside the vehicle to her. § 87(2)(b) was unhappy with the answer and requested to

speak to a supervisor. A supervisor came and reiterated PO Sampedro's answer to § 87(2)(b) § 87(2)(b) requested PO Sampedro's shield number, which PO Sampedro verbally provided. § 87(2)(b) took a photograph of PO Sampedro's shield. PO Sampedro did not intentionally cover her shield with her hair. PO Sampedro noted that she had extensions in her hair at the time and was unsure whether she wore her hair down or in a ponytail when she spoke to § 87(2)(b). After reviewing the photographs taken by § 87(2)(b) PO Sampedro affirmed that she did not intentionally cover her shield with her hair.

PO Sampedro prepared a memo book entry dated at 2:00 a.m. on August 19, 2023 (BR 53) documenting her interaction with § 87(2)(b) "Mother of defendant asked not to record inside of police facility; requests picture of A/O shield #., Shield # provided/Photo of shield taken by mother of defendant."

Per Administrative Guide Procedure 304-11 (BR 54), officers must courteously and clearly state their shield number or otherwise provide them to anyone who requests them to do so. The procedure further notes, "Uniformed members of the service are reminded that when performing official duties in uniform, their shield number or rank designation must be visible at all times."

§ 87(2)(g) It is therefore recommended that **Allegation L** be closed as **unable to determine**.

§ 87(2)(b) photograph shows that PO Sampedro's shield number was partially obstructed by her hair. § 87(2)(g) It is therefore recommended that **Allegation M** be closed as **unable to determine**.

§ 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) have been a party (BR 58-63).

- Sgt. Islam has been a member of service for 19 years and has been a subject in seven CCRB complaints and 11 allegations, one of which was substantiated.
 - 202101429 involved a substantiated allegation of discourtesy – word against Sgt. Islam. The Board recommended Command Discipline A and the NYPD imposed no penalty.
 - § 87(2)(g)
- PO Lau has been a member of service for six years and has been a subject in three CCRB complaints and nine allegations, one of which was substantiated.
 - 202103501 involved a substantiated allegation of refusal to process civilian complaint against PO Lau. The Board recommended Command Discipline B and the NYPD has yet to impose discipline.
 - § 87(2)(g)
- PO Sampedro has been a member of service for four years and has been a subject in six CCRB complaints and 12 allegations, one of which was substantiated.
 - 202102748 involved a substantiated allegation of seizure of property against PO Sampedro. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
 - § 87(2)(g)
- PO Simsgaby has been a member of service for three years and has been a subject in four CCRB complaints and four allegations, none of which have been substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming pain and suffering, medical bills, and personal injuries, seeking \$5,000,000 as redress (**BR 64**). § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 13

Investigator:	<u>Ethan C. Waterman</u>	<u>SI Ethan Waterman</u>	<u>04/03/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>JP Lozada</u>	<u>IM Jean-Paul Lozada</u>	<u>04/09/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date